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(1981) (Brennan, J., dissenting)).⁴ In that opinion, Justice Brennan explained that “once there is a ‘taking,’ compensation *must* be awarded” because “[a]s soon as private property has been taken, whether through formal condemnation proceedings, occupancy, physical invasion, or regulation, the landowner has *already* suffered a constitutional violation.” *Id.*, at 654.

First English embraced that view, reaffirming that “in the event of a taking, the compensation remedy is required by the Constitution.” 482 U. S., at 316; see *ibid.*, n. 9 (rejecting the view that “the Constitution does not, of its own force, furnish a basis for a court to award money damages against the government” (quoting Brief for United States as *Amicus Curiae* 14)). Compensation under the Takings Clause is a remedy for the “constitutional violation” that “the landowner has *already* suffered” at the time of the uncompensated taking. *San Diego Gas & Elec. Co.*, 450 U. S., at 654 (Brennan, J., dissenting); see *First English*, 482 U. S., at 315.

A later payment of compensation may remedy the constitutional violation that occurred at the time of the taking, but that does not mean the violation never took place. The violation is the only reason compensation was owed in the first place. A bank robber might give the loot back, but he still robbed the bank. The availability of a subsequent compensation remedy for a taking without compensation no more means there never was a constitutional violation in the first place than the availability of a damages action renders negligent conduct compliant with the duty of care.

⁴Justice Brennan was joined by Justices Stewart, Marshall, and Powell. The majority did not disagree with Justice Brennan’s analysis of the merits, but concluded that the Court lacked jurisdiction to address the question presented. Justice Rehnquist, concurring on the jurisdictional issue, noted that if he were satisfied that jurisdiction was proper, he “would have little difficulty in agreeing with much of what is said in the dissenting opinion.” 450 U. S., at 633–634. The Court reached the merits of the question presented in *San Diego* in *First English*, adopting Justice Brennan’s view in an opinion by Chief Justice Rehnquist.

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In sum, because a taking without compensation violates the self-executing Fifth Amendment at the time of the taking, the property owner can bring a federal suit at that time. Just as someone whose property has been taken by the Federal Government has a claim “founded . . . upon the Constitution” that he may bring under the Tucker Act, someone whose property has been taken by a local government has a claim under § 1983 for a “deprivation of [a] right[] . . . secured by the Constitution” that he may bring upon the taking in federal court. The “general rule” is that plaintiffs may bring constitutional claims under § 1983 “without first bringing any sort of state lawsuit, even when state court actions addressing the underlying behavior are available.” D. Dana & T. Merrill, *Property: Takings* 262 (2002); see *McNeese v. Board of Ed. for Community Unit School Dist. 187*, 373 U.S. 668, 672 (1963) (observing that it would defeat the purpose of § 1983 “if we held that assertion of a federal claim in a federal court must await an attempt to vindicate the same claim in a state court”); *Monroe v. Pape*, 365 U.S. 167, 183 (1961) (“The federal remedy is supplementary to the state remedy, and the latter need not be first sought and refused before the federal one is invoked.”). This is as true for takings claims as for any other claim grounded in the Bill of Rights.

B

Williamson County effectively established an exhaustion requirement for § 1983 takings claims when it held that a property owner must pursue state procedures for obtaining compensation before bringing a federal suit. But the Court did not phrase its holding in those terms; if it had, its error would have been clear. Instead, *Williamson County* broke with the Court’s longstanding position that a property owner has a constitutional claim to compensation at the time the government deprives him of his property, and held that there can be no uncompensated taking, and thus no Fifth Amendment claim actionable under § 1983, until the property

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owner has tried and failed to obtain compensation through the available state procedure. “[U]ntil it has used the procedure and been denied just compensation,” the property owner “‘has no claim against the Government’ for a taking.” 473 U. S., at 194–195 (quoting *Ruckelshaus v. Monsanto Co.*, 467 U. S. 986, 1018, n. 21 (1984)).

Williamson County drew that understanding of the Clause from *Ruckelshaus v. Monsanto Co.*, a decision from the prior Term. *Monsanto* did not involve a takings claim for just compensation. The plaintiff there sought to enjoin a federal statute because it effected a taking, even though the statute set up a special arbitration procedure for obtaining compensation, and the plaintiff could bring a takings claim pursuant to the Tucker Act if arbitration did not yield sufficient compensation. 467 U. S., at 1018. The Court rejected the plaintiff’s claim because “[e]quitable relief is not available to enjoin an alleged taking of private property for a public use, duly authorized by law, when a suit for compensation can be brought against the sovereign subsequent to the taking.” *Id.*, at 1016 (footnote omitted). That much is consistent with our precedent: Equitable relief was not available because monetary relief was under the Tucker Act.

That was enough to decide the case. But *Monsanto* went on to say that if the plaintiff obtained compensation in arbitration, then “no taking has occurred and the [plaintiff] has no claim against the Government.” *Id.*, at 1018, n. 21. Certainly it is correct that a fully compensated plaintiff has no further claim, but that is because the taking has been *remedied* by compensation, not because there was *no taking* in the first place. See *First English*, 482 U. S., at 316, n. 9. The statute in *Monsanto* simply required the plaintiff to attempt to vindicate its claim to compensation through arbitration before proceeding under the Tucker Act. The case offers no support to *Williamson County* in this regard, because Congress—unlike the States—is free to require plaintiffs to exhaust administrative remedies before bringing

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constitutional claims. See *McCarthy v. Madigan*, 503 U. S. 140, 144 (1992) (“Where Congress specifically mandates, exhaustion is required.”).

Williamson County also relied on *Monsanto* when it analogized its new state-litigation requirement to federal takings practice, stating that “taking[s] claims against the Federal Government are premature until the property owner has availed itself of the process provided by the Tucker Act.” 473 U. S., at 195. But the Court was simply confused. A claim for just compensation brought under the Tucker Act is not a prerequisite to a Fifth Amendment takings claim—it *is* a Fifth Amendment takings claim. A party who loses a Tucker Act suit has nowhere else to go to seek compensation for an alleged taking.

Other than *Monsanto*, the principal case to which *Williamson County* looked was *Parratt v. Taylor*, 451 U. S. 527 (1981). Like *Monsanto*, *Parratt* did not involve a takings claim for just compensation. Indeed, it was not a takings case at all. *Parratt* held that a prisoner deprived of \$23.50 worth of hobby materials by the rogue act of a state employee could not state a due process claim if the State provided adequate post-deprivation process. 451 U. S., at 543–544. But the analogy from the due process context to the takings context is strained, as *Williamson County* itself recognized. See 473 U. S., at 195, n. 14. It is not even possible for a State to provide pre-deprivation due process for the unauthorized act of a single employee. That is quite different from the taking of property *by the government* through physical invasion or a regulation that destroys a property’s productive use.

The poor reasoning of *Williamson County* may be partially explained by the circumstances in which the state-litigation issue reached the Court. The Court granted certiorari to decide whether the Fifth Amendment entitles a property owner to just compensation when a regulation temporarily deprives him of the use of his property. (*First*

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English later held that the answer was yes.) As *amicus curiae* in support of the local government, the United States argued in this Court that the developer could not state a Fifth Amendment claim because it had not pursued an inverse condemnation suit in state court. Neither party had raised that argument before.⁵ The Court then adopted the reasoning of the Solicitor General in an alternative holding, even though the case could have been resolved solely on the narrower and settled ground that no taking had occurred because the zoning board had not yet come to a final decision regarding the developer's proposal. In these circumstances, the Court may not have adequately tested the logic of the state-litigation requirement or considered its implications, most notably the preclusion trap later sprung by *San Remo*. That consequence was totally unanticipated in *Williamson County*.

The dissent, doing what respondents do not even dare to attempt, defends the original rationale of *Williamson County*—that there is no Fifth Amendment violation, and thus no Fifth Amendment claim, until the government denies the property owner compensation in a subsequent proceeding.⁶ But although the dissent makes a more thoughtful and

⁵The Solicitor General continues this tradition here, arguing for the first time as *amicus curiae* that state inverse condemnation claims “aris[e] under” federal law and can be brought in federal court under 28 U. S. C. § 1331 through the *Grable* doctrine. Brief for United States as *Amicus Curiae* 22–24; see *Grable & Sons Metal Products, Inc. v. Darue Engineering & Mfg.*, 545 U. S. 308 (2005). Because we agree with the Solicitor General's principal contention that federal takings claims can be brought immediately under § 1983, we have no occasion to consider his novel § 1331 argument.

⁶The dissent thinks that respondents still press this theory. *Post*, at 212, n. 3 (opinion of KAGAN, J.). But respondents instead describe *Williamson County* as resting on an understanding not of the elements of a federal takings claim but of the scope of 42 U. S. C. § 1983. They even go so far as to rewrite petitioner's question presented in such terms. Brief for Respondents i. For respondents, it does not matter whether a property owner has a Fifth Amendment claim at the time of a taking. What matters is hat, in re-

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considered argument than *Williamson County*, it cannot reconcile its view with our repeated holdings that a property owner acquires a constitutional right to compensation at the time of the taking. See *supra*, at 190–193. The only reason that a taking would automatically entitle a property owner to the remedy of compensation is that, as Justice Brennan explained, with the uncompensated taking “the landowner has *already* suffered a constitutional violation.” *San Diego Gas & Elec. Co.*, 450 U. S., at 654 (dissenting opinion). The dissent here provides no more reason to resist that conclusion than did *Williamson County*.

C

The Court in *Williamson County* relied on statements in our prior opinions that the Clause “does not provide or require that compensation shall be actually paid in advance of the occupancy of the land to be taken. But the owner is entitled to reasonable, certain and adequate provision for obtaining compensation” after a taking. *Cherokee Nation v. Southern Kansas R. Co.*, 135 U. S. 641, 659 (1890). Respondents rely on the same cases in contending that uncompensated takings for which compensation is subsequently available do not violate the Fifth Amendment at the time of the taking. But respondents read those statements too broadly. They concerned requests for injunctive relief, and the availability of subsequent compensation meant that such an equitable remedy was not available. See *Regional Rail*

spondents’ view, no constitutional violation occurs for purposes of § 1983 until the government has subsequently denied compensation. That characterization has no basis in the *Williamson County* opinion, which did not even quote § 1983 and stated that the Court’s reasoning applied with equal force to takings by the Federal Government, not covered by § 1983. 473 U. S., at 195. Respondents’ attempt to recast the state-litigation requirement as a § 1983-specific rule fails for the same reason as the logic of *Williamson County*—a property owner has a Fifth Amendment claim for a violation of the Takings Clause as soon as the government takes his property without paying for it.

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Reorganization Act Cases, 419 U. S. 102, 107, 149 (1974) (reversing a decision “enjoin[ing]” the enforcement of a federal statute because “the availability of the Tucker Act guarantees an adequate remedy at law for any taking which might occur”); *Hurley v. Kincaid*, 285 U. S. 95, 99, 105 (1932) (rejecting a request to “enjoin the carrying out of any work” on a flood control project because the Tucker Act provided the plaintiff with “a plain, adequate, and complete remedy at law”). Simply because the property owner was not entitled to injunctive relief at the time of the taking does not mean there was no violation of the Takings Clause at that time.

The history of takings litigation provides valuable context. At the time of the founding there usually was no compensation remedy available to property owners. On occasion, when a legislature authorized a particular government action that took private property, it might also create a special owner-initiated procedure for obtaining compensation. But there were no general causes of action through which plaintiffs could obtain compensation for property taken for public use. Brauneis, *The First Constitutional Tort: The Remedial Revolution in Nineteenth-Century State Just Compensation Law*, 52 Vand. L. Rev. 57, 69–70, and n. 33 (1999).

Until the 1870s, the typical recourse of a property owner who had suffered an uncompensated taking was to bring a common law trespass action against the responsible corporation or government official. The official would then raise the defense that his trespass was lawful because authorized by statute or ordinance, and the plaintiff would respond that the law was unconstitutional because it provided for a taking without just compensation. If the plaintiff prevailed, he nonetheless had no way at common law to obtain money damages for a permanent taking—that is, just compensation for the total value of his property. He could obtain only retrospective damages, as well as an injunction ejecting the government from his property going forward. See *id.*, at 67–69, 97–99.

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As Chancellor Kent explained when granting a property owner equitable relief, the Takings Clause and its analogs in state constitutions required that “a fair compensation must, in all cases, be *previously* made to the individuals affected.” *Gardner v. Newburgh*, 2 Johns. Ch. 162, 166 (N. Y. 1816) (emphasis added). If a government took property without payment, a court would set aside the taking because it violated the Constitution and order the property restored to its owner. The Framers meant to prohibit the Federal Government from *taking* property without paying for it. Allowing the government to *keep* the property pending subsequent compensation to the owner, in proceedings that hardly existed in 1787, was not what they envisioned.

Antebellum courts, which had no means of compensating a property owner for his loss, had no way to redress the violation of an owner’s Fifth Amendment rights other than ordering the government to give him back his property. See *Callender v. Marsh*, 18 Mass. 418, 430–431 (1823) (“[I]f by virtue of any legislative act the land of any citizen should be occupied by the public . . . , without any means provided to indemnify the owner of the property, . . . because such a statute would be directly contrary to the [Massachusetts takings clause]; and as no action can be maintained against the public for damages, the only way to secure the party in his constitutional rights would be to declare void the public appropriation.”). But in the 1870s, as state courts began to recognize implied rights of action for damages under the state equivalents of the Takings Clause, they declined to grant injunctions because property owners had an adequate remedy at law. See, e.g., *Stetson v. Chicago & Evanston R. Co.*, 75 Ill. 74, 78 (1874) (“What injury, if any, [the property owner] has sustained, may be compensated by damages recoverable by an action at law.”); see also Brauneis, *supra*, at 97–99, 110–112. On the federal level, Congress enabled property owners to obtain compensation for takings in federal court when it passed the Tucker Act in 1887, and we

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subsequently joined the state courts in holding that the compensation remedy is required by the Takings Clause itself. See *First English*, 482 U. S., at 316 (collecting cases).

Today, because the federal and nearly all state governments provide just compensation remedies to property owners who have suffered a taking, equitable relief is generally unavailable. As long as an adequate provision for obtaining just compensation exists, there is no basis to enjoin the government's action effecting a taking. But that is because, as the Court explained in *First English*, such a procedure is a remedy for a taking that violated the Constitution, not because the availability of the procedure somehow prevented the violation from occurring in the first place. See *supra*, at 191–193.⁷

The dissent contends that our characterization of *Cherokee Nation* effectively overrules “a hundred-plus years of legal rulings.” *Post*, at 213 (opinion of KAGAN, J.). But under today's decision every one of the cases cited by the dissent would come out the same way—the plaintiffs would not be entitled to the relief they requested because they could instead pursue a suit for compensation. The premise of such a suit for compensation is that the property owner has already

⁷ Among the cases invoking the *Cherokee Nation* language that the parties have raised, only one, *Yearsley v. W. A. Ross Constr. Co.*, 309 U. S. 18 (1940), rejected a demand for compensation. *Yearsley* concerned a state tort suit alleging a taking by a contractor building dikes for the Federal Government. In ruling for the contractors, we suggested that the taking did not violate the Fifth Amendment because the property owner had the opportunity to pursue a claim for just compensation under the Tucker Act. As explained, however, a claim for compensation brought under the Tucker Act *is* a claim for a violation of the Fifth Amendment; it does not prevent a violation from occurring. Regardless, *Yearsley* was right to hold that the contractors were immune from suit. Because the Tucker Act provides a complete remedy for any taking by the Federal Government, it “excludes liability of the Government's representatives lawfully acting on its behalf in relation to the taking,” barring the plaintiffs from seeking any relief from the contractors themselves. *Id.*, at 22.

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suffered a violation of the Fifth Amendment that may be remedied by money damages.⁸

* * *

We conclude that a government violates the Takings Clause when it takes property without compensation, and that a property owner may bring a Fifth Amendment claim under § 1983 at that time. That does not as a practical matter mean that government action or regulation may not proceed in the absence of contemporaneous compensation. Given the availability of post-taking compensation, barring the government from acting will ordinarily not be appropriate. But because the violation is complete at the time of the taking, pursuit of a remedy in federal court need not await any subsequent state action. Takings claims against local governments should be handled the same as other claims under the Bill of Rights. *Williamson County* erred in holding otherwise.

IV

The next question is whether we should overrule *Williamson County*, or whether *stare decisis* counsels in favor of adhering to the decision, despite its error. The doctrine of *stare decisis* reflects a judgment “that ‘in most matters it is more important that the applicable rule of law be settled than that it be settled right.’” *Agostini v. Felton*, 521 U. S. 203, 235 (1997) (quoting *Burnet v. Coronado Oil & Gas Co.*, 285 U. S. 393, 406 (1932) (Brandeis, J., dissenting)). The doctrine “is at its weakest when we interpret the Constitution,” as we did in *Williamson County*, because only this Court

⁸The dissent also asserts that today’s ruling “betrays judicial federalism.” *Post*, at 221. But since the Civil Rights Act of 1871, part of “judicial federalism” has been the availability of a federal cause of action when a local government violates the Constitution. 42 U. S. C. § 1983. Invoking that federal protection in the face of state action violating the Fifth Amendment cannot properly be regarded as a betrayal of federalism.

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or a constitutional amendment can alter our holdings. *Agostini*, 521 U. S., at 235.

We have identified several factors to consider in deciding whether to overrule a past decision, including “the quality of [its] reasoning, the workability of the rule it established, its consistency with other related decisions, . . . and reliance on the decision.” *Janus v. State, County, and Municipal Employees*, 585 U. S. 878, 917 (2018). All of these factors counsel in favor of overruling *Williamson County*.

Williamson County was not just wrong. Its reasoning was exceptionally ill founded and conflicted with much of our takings jurisprudence. See *supra*, at 194–196. Its key conclusion, which it drew from unnecessary language in *Monsanto*—that a property owner does not have a ripe federal takings claim until he has unsuccessfully pursued an initial state law claim for just compensation—ignored *Jacobs* and many subsequent decisions holding that a property owner acquires a Fifth Amendment right to compensation at the time of a taking. This contradiction was on stark display just two years later in *First English*.

The decision has come in for repeated criticism over the years from Justices of this Court and many respected commentators. See *San Remo*, 545 U. S., at 348 (Rehnquist, C. J., joined by O’Connor, Kennedy, and THOMAS, JJ., concurring in judgment); *Arrigoni Enterprises, LLC v. Durham*, 578 U. S. 951 (2016) (THOMAS, J., joined by Kennedy, J., dissenting from denial of certiorari); Merrill, Anticipatory Remedies for Takings, 128 Harv. L. Rev. 1630, 1647–1649 (2015); McConnell, *Horne* and the Normalization of Takings Litigation: A Response to Professor Echeverria, 43 Env. L. Rep. 10749, 10751 (2013); Friedman, Under the Law of Federal Jurisdiction: Allocating Cases Between Federal and State Courts, 104 Colum. L. Rev. 1211, 1264 (2004); Monaghan, State Law Wrongs, State Law Remedies, and the Fourteenth Amendment, 86 Colum. L. Rev. 979, 989 (1986). Even the academic defenders of the state-litigation requirement

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base it on federalism concerns (although they do not reconcile those concerns with the settled construction of § 1983) rather than the reasoning of the opinion itself. See Echeverria, *Horne v. Department of Agriculture: An Invitation To Reexamine “Ripeness” Doctrine in Takings Litigation*, 43 Env. L. Rep. 10735, 10744 (2013); Sterk, *The Demise of Federal Takings Litigation*, 48 Wm. & Mary L. Rev. 251, 288 (2006).

Because of its shaky foundations, the state-litigation requirement has been a rule in search of a justification for over 30 years. We eventually abandoned the view that the requirement is an element of a takings claim and recast it as a “prudential” ripeness rule. See *Horne v. Department of Agriculture*, 569 U. S. 513, 525–526 (2013); *Suitum v. Tahoe Regional Planning Agency*, 520 U. S. 725, 733–734 (1997). No party defends that approach here. See Brief for Respondents 37; Brief for United States as *Amicus Curiae* 19–20. Respondents have taken a new tack, adopting a § 1983-specific theory at which *Williamson County* did not even hint. See n. 6, *supra*. The fact that the justification for the state-litigation requirement continues to evolve is another factor undermining the force of *stare decisis*. See *Janus*, 585 U. S., at 906.

The state-litigation requirement has also proved to be unworkable in practice. *Williamson County* envisioned that takings plaintiffs would ripen their federal claims in state court and then, if necessary, bring a federal suit under § 1983. But, as we held in *San Remo*, the state court’s resolution of the plaintiff’s inverse condemnation claim has preclusive effect in any subsequent federal suit. The upshot is that many takings plaintiffs never have the opportunity to litigate in a federal forum that § 1983 by its terms seems to provide. That significant consequence was not considered by the Court in *Williamson County*.

The dissent argues that our constitutional holding in *Williamson County* should enjoy the “enhanced” form of *stare decisis* we usually reserve for statutory decisions, because

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Congress could have eliminated the *San Remo* preclusion trap by amending the full faith and credit statute. *Post*, at 222 (quoting *Kimble v. Marvel Entertainment, LLC*, 576 U. S. 446, 456 (2015)). But takings plaintiffs, unlike plaintiffs bringing any other constitutional claim, would still have been forced to pursue relief under state law before they could bring suit in federal court. Congress could not have lifted that unjustified exhaustion requirement because, under *Williamson County*, a property owner had no federal claim until a state court denied him compensation.

Finally, there are no reliance interests on the state-litigation requirement. We have recognized that the force of *stare decisis* is “reduced” when rules that do not “serve as a guide to lawful behavior” are at issue. *United States v. Gaudin*, 515 U. S. 506, 521 (1995); see *Alleyne v. United States*, 570 U. S. 99, 119 (2013) (SOTOMAYOR, J., concurring). Our holding that uncompensated takings violate the Fifth Amendment will not expose governments to new liability; it will simply allow into federal court takings claims that otherwise would have been brought as inverse condemnation suits in state court.

Governments need not fear that our holding will lead federal courts to invalidate their regulations as unconstitutional. As long as just compensation remedies are available—as they have been for nearly 150 years—injunctive relief will be foreclosed. For the same reason, the Federal Government need not worry that courts will set aside agency actions as unconstitutional under the Administrative Procedure Act. 5 U. S. C. § 706(2)(B). Federal courts will not invalidate an otherwise lawful uncompensated taking when the property owner can receive complete relief through a Fifth Amendment claim brought under the Tucker Act.

In light of all the foregoing, the dissent cannot, with respect, fairly maintain its extreme assertions regarding our application of the principle of *stare decisis*.

THOMAS, J., concurring

* * *

The state-litigation requirement of *Williamson County* is overruled. A property owner may bring a takings claim under § 1983 upon the taking of his property without just compensation by a local government. The judgment of the United States Court of Appeals for the Third Circuit is vacated, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE THOMAS, concurring.

The Fifth Amendment's Takings Clause prohibits the government from "tak[ing]" private property "without just compensation." The Court correctly interprets this text by holding that a violation of this Clause occurs as soon as the government takes property without paying for it.

The United States, by contrast, urges us not to enforce the Takings Clause as written. It worries that requiring payment to accompany a taking would allow courts to enjoin or invalidate broad regulatory programs "merely" because the program takes property without paying for it. Brief for United States as *Amicus Curiae* 12. According to the United States, "there is a 'nearly infinite variety of ways in which government actions or regulations can affect property interests,'" and it ought to be good enough that the government "implicitly promises to pay compensation for any taking" if a property owner successfully sues the government in court. Supplemental Letter Brief for United States as *Amicus Curiae* 5 (Supp. Brief) (citing Tucker Act, 28 U. S. C. § 1491). Government officials, the United States contends, should be able to implement regulatory programs "without fear" of injunction or invalidation under the Takings Clause, "even when" the program is so far reaching that the officials "cannot determine whether a taking will occur." Supp. Brief 5.

This "sue me" approach to the Takings Clause is untenable. The Fifth Amendment does not merely provide a dam-

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ages remedy to a property owner willing to “shoulder the burden of securing compensation” after the government takes property without paying for it. *Arrigoni Enterprises, LLC v. Durham*, 578 U. S. 951, 952 (2016) (THOMAS, J., dissenting from denial of certiorari). Instead, it makes just compensation a “prerequisite” to the government’s authority to “tak[e] property for public use.” *Ibid.* A “purported exercise of the eminent-domain power” is therefore “invalid” unless the government “pays just compensation before or at the time of its taking.” *Ibid.* If this requirement makes some regulatory programs “unworkable in practice,” Supp. Brief 5, so be it—our role is to enforce the Takings Clause as written.

Of course, as the Court correctly explains, the United States’ concerns about injunctions may be misplaced. *Ante*, at 198–200. Injunctive relief is not available when an adequate remedy exists at law. *E. g.*, *Monsanto Co. v. Geertson Seed Farms*, 561 U. S. 139, 156 (2010). And even when relief is appropriate for a particular plaintiff, it does not follow that a court may enjoin or invalidate an entire regulatory “program,” Supp. Brief 5, by granting relief “beyond the parties to the case,” *Trump v. Hawaii*, 585 U. S. 667, 717 (2018) (THOMAS, J., concurring); see *id.*, at 713 (expressing skepticism about “universal injunctions”).

Still, “[w]hen the government repudiates [its] duty” to pay just compensation, its actions “are not only unconstitutional” but may be “tortious as well.” *Monterey v. Del Monte Dunes at Monterey, Ltd.*, 526 U. S. 687, 717 (1999) (plurality opinion). I do not understand the Court’s opinion to foreclose the application of ordinary remedial principles to takings claims and related common-law tort claims, such as trespass. I therefore join it in full.

JUSTICE KAGAN, with whom JUSTICE GINSBURG, JUSTICE BREYER, and JUSTICE SOTOMAYOR join, dissenting.

Today, the Court formally overrules *Williamson County Regional Planning Comm’n v. Hamilton Bank of Johnson*

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City, 473 U. S. 172 (1985). But its decision rejects far more than that single case. *Williamson County* was rooted in an understanding of the Fifth Amendment's Takings Clause stretching back to the late 1800s. On that view, a government could take property so long as it provided a reliable mechanism to pay just compensation, even if the payment came after the fact. No longer. The majority today holds, in conflict with precedent after precedent, that a government violates the Constitution whenever it takes property without advance compensation—no matter how good its commitment to pay. That conclusion has no basis in the Takings Clause. Its consequence is to channel a mass of quintessentially local cases involving complex state-law issues into federal courts. And it transgresses all usual principles of *stare decisis*. I respectfully dissent.

I

Begin with the basics—the meaning of the Takings Clause. The right that Clause confers is not to be free from government takings of property for public purposes. Instead, the right is to be free from those takings when the government fails to provide “just compensation.” In other words, the government *can* take private property for public purposes, so long as it fairly pays the property owner. That precept, which the majority does not contest, comes straight out of the constitutional text: “[P]rivate property [shall not] be taken for public use, without just compensation.” Amdt. 5. “As its language indicates, [the Takings Clause] does not prohibit the taking of private property, but instead places a condition on the exercise of that power.” *First English Evangelical Lutheran Church of Glendale v. County of Los Angeles*, 482 U. S. 304, 314 (1987). And that constitutional choice accords with ancient principles about what governments do. The eminent domain power—the capacity to “take private property for public uses”—is an integral “attribute of sovereignty.” *Boom Co. v. Patterson*, 98 U. S. 403, 406 (1879); see *Kohl v. United States*, 91 U. S. 367, 371

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(1876) (The power is “essential to [the Government’s] independent existence and perpetuity”). Small surprise, then, that the Constitution does not prohibit takings for public purposes, but only requires the government to pay fair value.

In that way, the Takings Clause is unique among the Bill of Rights’ guarantees. It is, for example, unlike the Fourth Amendment’s protection against excessive force—which the majority mistakenly proposes as an analogy. See *ante*, at 191. Suppose a law enforcement officer uses excessive force and the victim recovers damages for his injuries. Did a constitutional violation occur? Of course. The Constitution prohibits what the officer did; the payment of damages merely remedied the constitutional wrong. But the Takings Clause is different because it does not prohibit takings; to the contrary, it permits them provided the government gives just compensation. So when the government “takes and pays,” it is not violating the Constitution at all. Put another way, a Takings Clause violation has two necessary elements. First, the government must take the property. Second, it must deny the property owner just compensation. See *Horne v. Department of Agriculture*, 569 U. S. 513, 525–526 (2013) (“[A] Fifth Amendment claim is premature until it is clear that the Government has both taken property *and* denied just compensation” (emphasis in original)). If the government has not done both, no constitutional violation has happened. All this is well-trod ground. See, e. g., *United States v. Jones*, 109 U. S. 513, 518 (1883); *Albert Hanson Lumber Co. v. United States*, 261 U. S. 581, 586 (1923). Even the majority (despite its faulty analogy) does not contest it.

Similarly well-settled—until the majority’s opinion today—was the answer to a follow-on question: At what point has the government denied a property owner just compensation, so as to complete a Fifth Amendment violation? For over a hundred years, this Court held that advance or contemporaneous payment was not required, so long as the government had established reliable procedures for an owner

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to later obtain just compensation (including interest for any time elapsed). The rule got its start in *Cherokee Nation v. Southern Kansas R. Co.*, 135 U.S. 641 (1890), where the Tribe argued that a federal statute authorizing condemnation of its property violated the Fifth Amendment because the law did not require advance payment. The Court disagreed. It held that the Takings Clause “does not provide or require that compensation shall be actually paid in advance of the occupancy of the land to be taken” so long as the government made available to the owner “reasonable, certain and adequate provision for obtaining compensation” afterward. *Id.*, at 659. Decade after decade, the Court repeated that principle.¹ As another case put the point: The Takings Clause does not demand “that compensation should be made previous to the taking” so long as “adequate means [are] provided for a reasonably just and prompt ascertainment and payment of the compensation.” *Crozier v. Krupp A. G.*, 224 U.S. 290, 306 (1912). And the Court also made clear that a statute creating a right of action against the responsible government entity generally qualified as a constitutionally adequate compensatory mechanism. See, e.g., *Williams v. Parker*, 188 U.S. 491, 502 (1903); *Yearsley v. W. A. Ross Constr. Co.*, 309 U.S. 18, 20–21 (1940).²

¹ See also, e.g., *Yearsley v. W. A. Ross Constr. Co.*, 309 U.S. 18, 21–22 (1940); *Hurley v. Kincaid*, 285 U.S. 95, 104 (1932); *Dohany v. Rogers*, 281 U.S. 362, 365 (1930); *Joslin Mfg. Co. v. Providence*, 262 U.S. 668, 677 (1923); *Albert Hanson Lumber Co. v. United States*, 261 U.S. 581, 587 (1923); *Hays v. Port of Seattle*, 251 U.S. 233, 238 (1920); *Bragg v. Weaver*, 251 U.S. 57, 62 (1919); *Madisonville Traction Co. v. Saint Bernard Mining Co.*, 196 U.S. 239, 251–252 (1905); *Williams v. Parker*, 188 U.S. 491, 502 (1903); *Backus v. Fort Street Union Depot Co.*, 169 U.S. 557, 568 (1898); *Sweet v. Rechel*, 159 U.S. 380, 400–402 (1895).

² In many of these cases, the Court held as well that if payment occurs later, it must include interest. See, e.g., *id.*, at 407; *Albert Hanson Lumber Co.*, 261 U.S., at 586. That requirement flows from the constitutional demand for “just” compensation: As one of the early cases explained, the property owner must be placed “in as good position pecuniarily as he would have been if his property had not been taken.” *Ibid.*

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Williamson County followed from those decisions as night the day. The case began when a local planning commission rejected a property owner's development proposal. The owner chose not to seek compensation through the procedure the State had created—an "inverse condemnation" action against the commission. Instead, the owner sued in federal court alleging a Takings Clause violation under 42 U. S. C. §1983. Consistent with the century's worth of precedent I have recounted above, the Court found that no Fifth Amendment violation had yet occurred. See 473 U. S., at 195. The Court first recognized that "[t]he Fifth Amendment does not proscribe the taking of property; it proscribes taking without just compensation." *Id.*, at 194. Next, the Court stated (citing no fewer than five precedents) that the Amendment does not demand that "compensation be paid in advance of, or contemporaneously with, the taking." *Ibid.* "[A]ll that is required," the Court continued, is that the State have provided "a 'reasonable, certain and adequate provision for obtaining compensation.'" *Ibid.* (quoting *Cherokee Nation*, 135 U. S., at 659). Here, the State had done so: Nothing suggested that the inverse condemnation procedure was inadequate. 473 U. S., at 196–197. So the property owner's claim was "not yet ripe": The owner could not "claim a violation of the [Takings] Clause until it [had] used the procedure and been denied." *Id.*, at 194–195.

So contrary to the majority's portrayal, *Williamson County* did not result from some inexplicable confusion about "how the Takings Clause works." *Ante*, at 191. Far from it. *Williamson County* built on a long line of decisions addressing the elements of a Takings Clause violation. The Court there said only two things remotely new. First, the Court found that the State's inverse condemnation procedure qualified as a "reasonable, certain and adequate" procedure. But no one in this case disputes anything to do with that conclusion—including that the equivalent Pennsylvania procedure here is similarly adequate. Second, the Court held

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that a § 1983 suit could not be brought until a property owner had unsuccessfully invoked the State's procedure for obtaining payment. But that was a direct function of the Court's prior holdings. Everyone agrees that a § 1983 suit cannot be brought before a constitutional violation has occurred. And according to the Court's repeated decisions, a Takings Clause violation does not occur until an owner has used the government's procedures and failed to obtain just compensation. All that *Williamson County* did was to put the period on an already-completed sentence about when a takings claim arises.³

Today's decision thus overthrows the Court's long-settled view of the Takings Clause. The majority declares, as against a mountain of precedent, that a government taking private property for public purposes must pay compensation at that moment or in advance. See *ante*, at 189–190. If the government fails to do so, a constitutional violation has occurred, regardless of whether “reasonable, certain and adequate” compensatory mechanisms exist. *Cherokee Nation*, 135 U. S., at 659. And regardless of how many times this Court

³Contrary to the majority's description, see *ante*, at 197, and n. 6, the respondents have exactly this view of *Williamson County* (and of the cases preceding it). The respondents discuss (as I do, see *supra*, at 209–210) the “long line of precedent” holding that “the availability of a reasonable, certain, and adequate inverse-condemnation procedure fulfills the duty” of a government to pay just compensation for a taking. Brief for Respondents 22–23. The respondents then conclude (again, as I do, see *supra*, at 211–212) that *Williamson County* “sound[ly]” and “straightforwardly applied that precedent to hold that a property owner who forgoes an available and adequate inverse-condemnation remedy has not been deprived of any constitutional right and thus cannot proceed under Section 1983.” Brief for Respondents 22. (Again contra the majority, the respondents' only theory of § 1983 is the one everyone agrees with—that a § 1983 suit cannot be brought before a constitutional violation has occurred.) So while I appreciate the compliment, I cannot claim to argue anything novel or “dar[ing]” here. *Ante*, at 197. My argument is the same as the respondents', which is the same as *Williamson County's*, which is the same as all the prior precedents'.